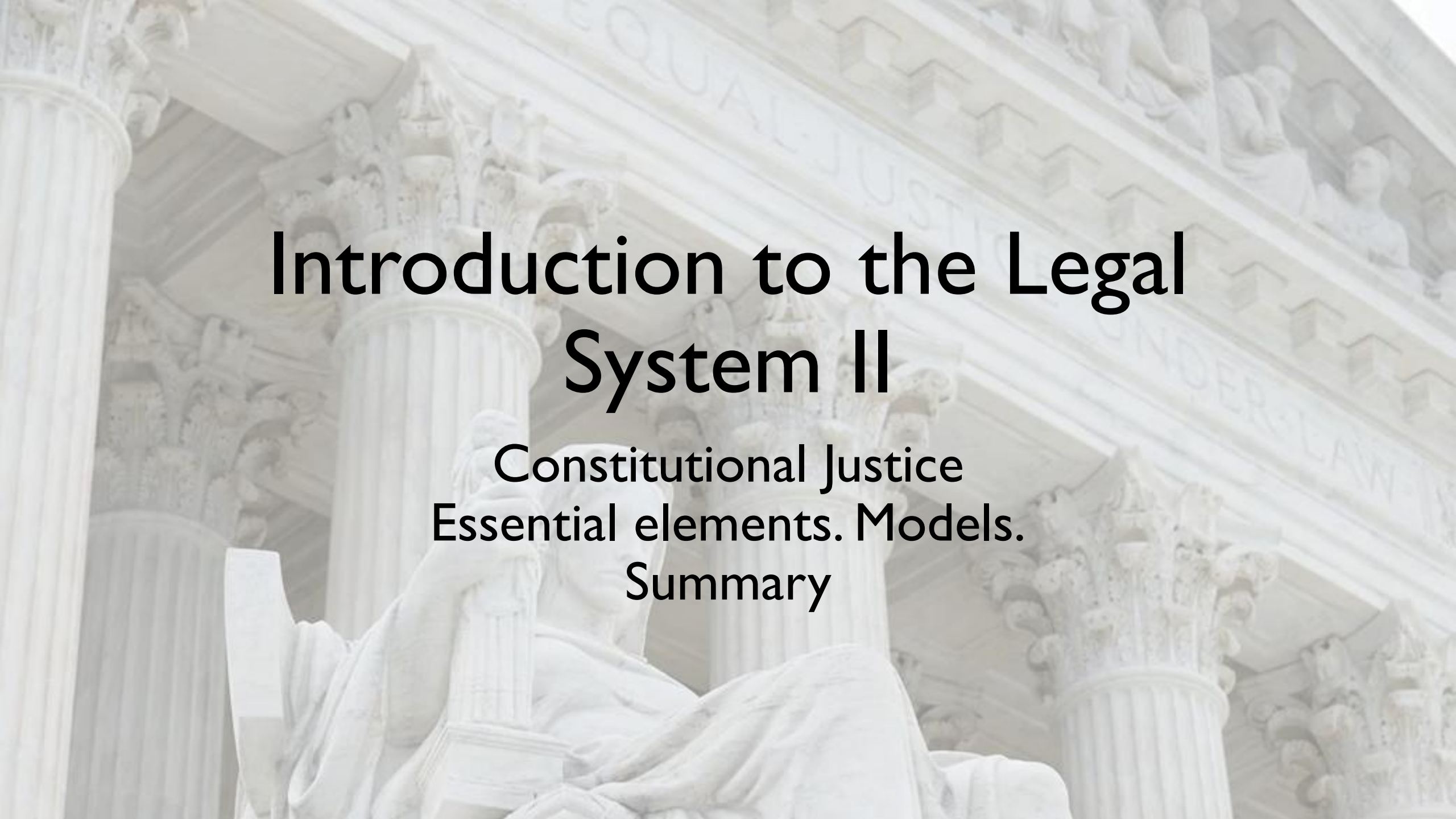


The background is a faded, light-colored image of a classical building facade. It features several tall, fluted columns and a large statue of a seated figure, possibly a personification of Justice or Liberty, holding a tablet. The architecture is highly detailed with carvings and moldings. The text is overlaid on this background.

Introduction to the Legal System II

Constitutional Justice
Essential elements. Models.
Summary

a. Why does a Legal System need a Supreme/Constitutional Court?

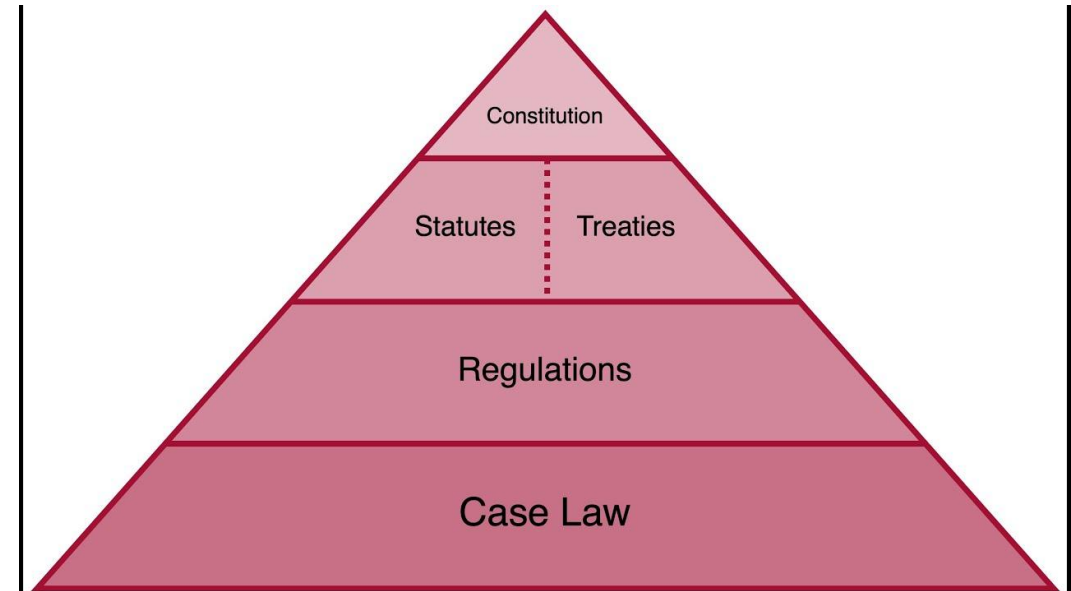
- Three main reasons:

To ensure certainty and equality;

To ensure the Rule of Law;

To resolve conflicts between central and decentralized government.

- a. Definition of Constitutional Justice,
Constitutional Adjudication or Constitutional
Review
- When a jurisdictional body compares with legal sources which are subordinate to the Constitution (object of review) with the rigid and codified Constitution (parameter of review) and - in case of contrast - declares them unconstitutional.



How constitutional judges are selected

Appointment
Based System

Election Based
System

Predetermined
system

Mixed System

How constitutional judges are selected

Appointment Based System:



Judges are nominated (appointed) without any intervention of the legislative body (Parliament).

[US:Art. II, sec. 2:

“He [the President] ... shall nominate, and by and with the Advice and Consent of the Senate, shall appoint ... Judges of the supreme Court”.]

How constitutional judges are selected

Election Based System

ii. Election based system:

Parliaments exert greater influence upon the election of constitutional judges in comparison with the election of judges of regular Courts.

[Germany, Art. 94, par. I:

“(I) The Federal Constitutional Court shall consist of federal judges and other members. Half the members of the Federal Constitutional Court shall be elected by the Bundestag and half by the Bundesrat.”]

How constitutional judges are selected

Predetermined system

Predetermined system:

Neither Parliament nor the Government are directly involved in the appointment of constitutional judges.

[Greece, Art. 100, par. 2:

“The Court specified in paragraph 1 shall be composed of the President of the Supreme Administrative Court, the President of the Supreme Civil and Criminal Court and the President of the Court of Audit, four Councillors of the Supreme Administrative Court and four members of the Supreme Civil and Criminal Court chosen by lot for a two-year term”.]

How constitutional judges are selected

Mixed system

Mixed system:

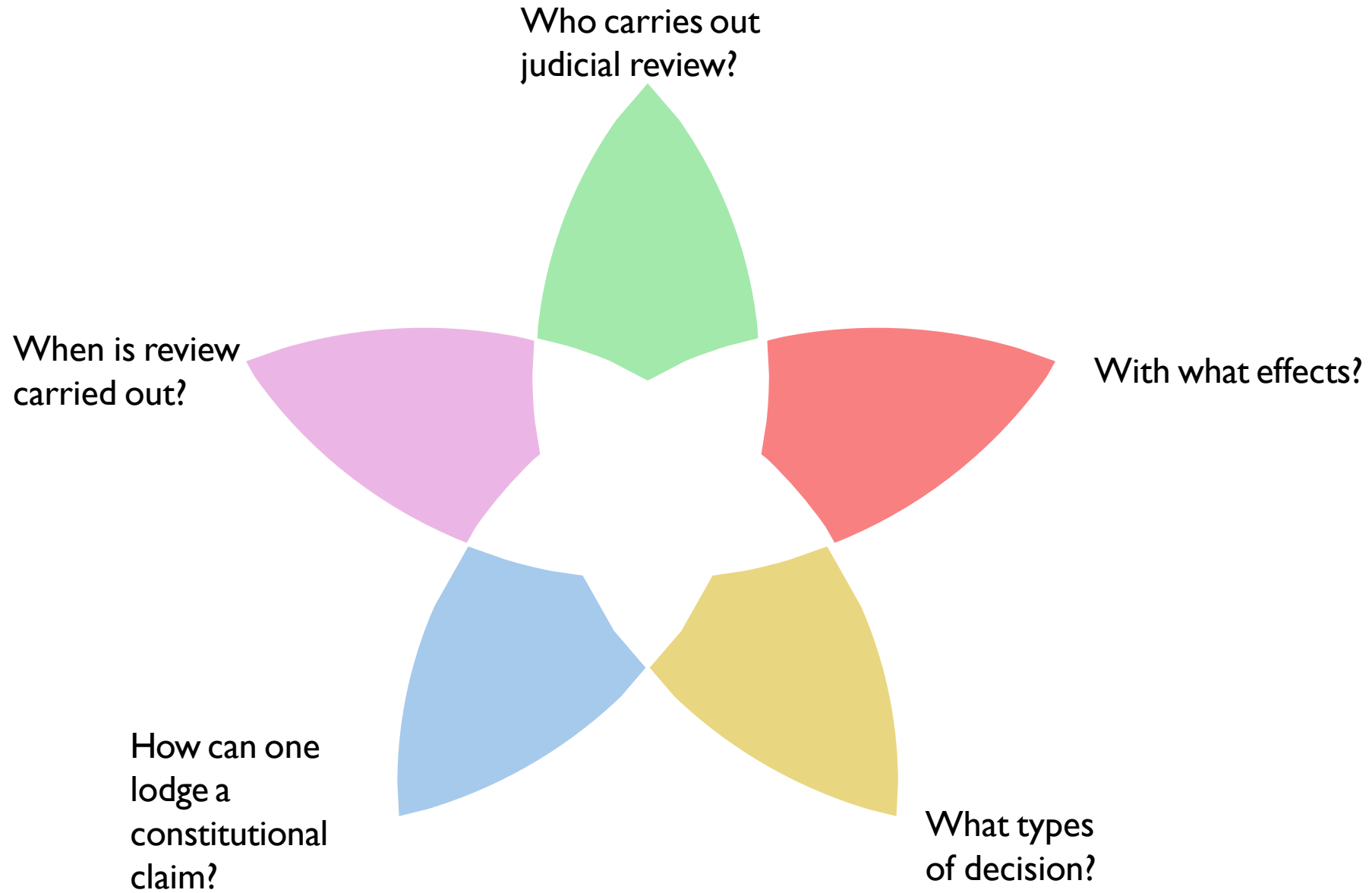
- Some of the judges are elected by the legislative body;
- Some of the judges are appointed by non-legislative bodies.

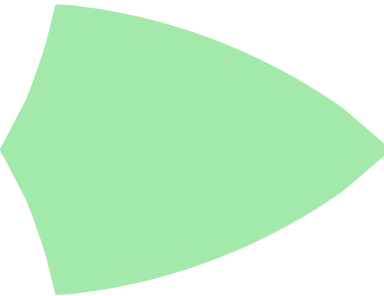
[Austria; Italy; Spain]

[Spain: Sec. 159, par. 1:

“The Constitutional Court shall consist of twelve members appointed by the King. Of these four shall be nominated by the Congress by a majority of three-fifths of its members, four shall be nominated by the Senate with the same majority, two shall be nominated by the Government, and two by the General Council of the Judicial Power.”]

Essential Components of Constitutional Review





Who carries out judicial review?

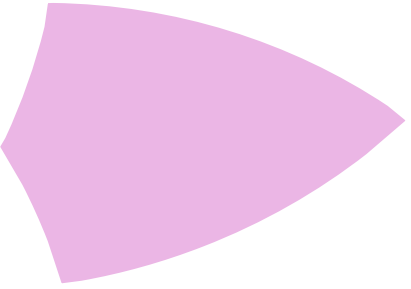
We distinguish:

Centralized review:

Judicial review is carried out exclusively by an ad hoc Court-like body;

Decentralized review:

Judicial review is carried out by any judge during regular court proceedings.



When is review carried out?

We distinguish:

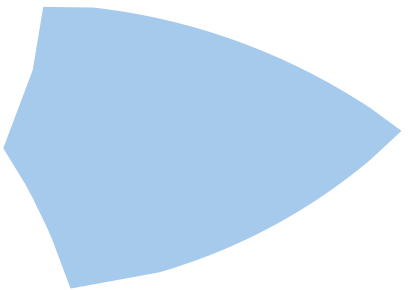
Preventative review (a priori):

Judicial Review is carried out before the law has come into effect;

[France with reference to statute laws; Italy with reference to regional laws before 2001 amendment.]

Repressive review (a posteriori):

Judicial review is carried out after the law has come into effect



How can one lodge a constitutional claim?

We distinguish:

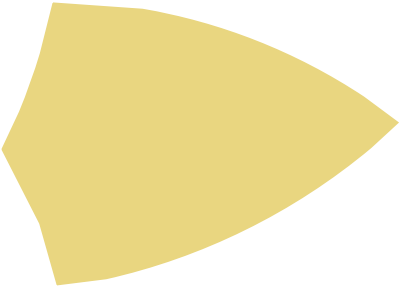
Principaliter (Abstract):

It may be lodged independently of the proceedings in a specific case by:

- i. Institutions;
- ii. Associations;
- iii. Individuals.

Incidenter (Specific):

Judicial review is carried out during a regular



What types of decision?

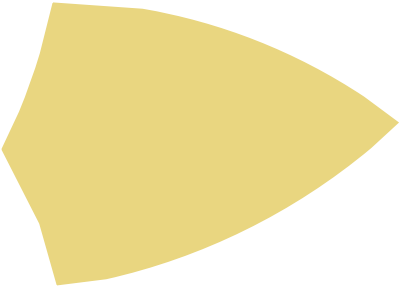
We distinguish:

Cassation decision

Declaratory decision

Appellate decision

Interpretative decision



What types of decision?

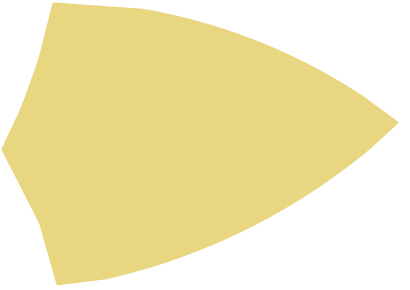
We distinguish:

Cassation decision

Annulment (*ab initio*)
Abrogation
(prospectively)

Declaratory decision

It may also be of a
preventative character



What types of decision?

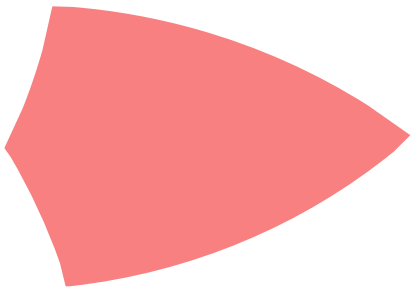
We distinguish:

Appellate decision

The Constitutional Court appeals to the Legislature (explicitly or implicitly, with or without time limit) to make changes to legislation it deems to be in violation of the Constitution.

Interpretative decision

The Constitutional Court secures with its own interpretation that in the future the implementation of the statute complies with the Constitution.



With what effects?

N.B. That effects may change depending on whether the law is declared unconstitutional or not.

There are 2 possible effects.

Subjective effect;

- i) *Erga omnes*: the decision is generally binding.
- ii) *Inter partes*: the decision binds only the parties of the controversy.

Temporal effect.

- i) *Ex tunc*: from the moment a disputed provision took effect.
- ii) *Ex nunc*: from the moment the decision on unconstitutionality was taken.

Models of Constitutional Review

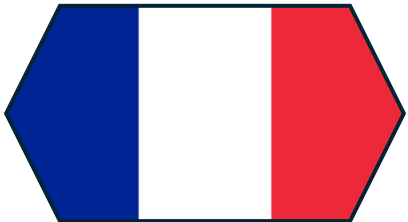
We can distinguish three different models of constitutional review:



The **American** model of constitutional review;



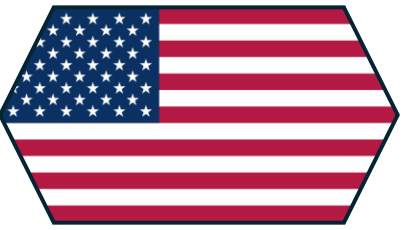
The **Austrian** model of constitutional review;



The **French** model of constitutional review.



The **Hybrid** models of constitutional review;



The **American** model of constitutional review

Judicial Review is carried out:

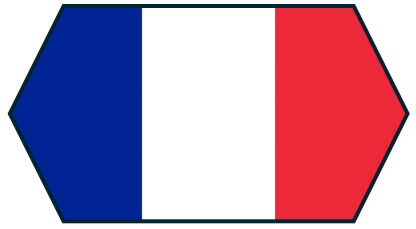
- i. By all regular Courts: decentralized review;
- ii. Under the regular Court proceedings: *incidenter*;
- iii. After the law has come into effect: *a posteriori*.



The **Austrian** model of constitutional review

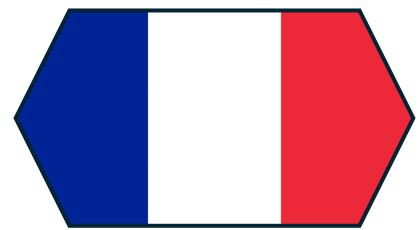
Judicial Review is carried out:

- i. By the specialized *ad hoc* Constitutional Court:
centralized review;
- ii. Under special proceedings:
principaliter; abstract;
- iii. After the law has come into effect:
a posteriori.



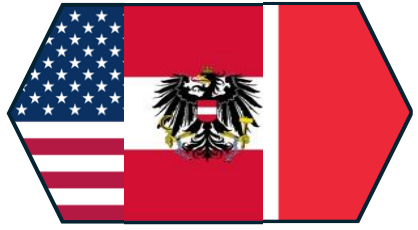
The French model of constitutional review

- i) The Constitutions of 1799 and 1852 gave the Senate the power to carry out preventative constitutional review (only theoretical).
- ii) It was only with the Constitution of the Fourth Republic in 1946 that France finally set up an *ad hoc* body, the *Comité constitutionnel* for constitutional review. However, its jurisdiction was very limited and it only carried out preventative review.
- iii) Under the Constitution of the Fifth Republic, France has a Conseil constitutionnel.
- iv) Until the reform of 2008, it only carries out preventative review.
- v) However, it uses the Preamble of the 1946 Constitution – which also incorporates the Declaration of the Rights of Man and the Citizen of 1789 – as a parameter (*bloc de constitutionnalité*) for constitutional review (following a judgment taken in 1971).
- vi) Moreover, in 1974 is introduced the *saisine parlementaire*, i.e. a constitutional petition that can be lodged by a parliamentary minority.



The **French** model of constitutional review

- I. The 2008 reform has introduced the so-called *question prioritaire de constitutionnalité* (QPC).
- II. QPCs can only be raised whenever the parties fear that the legal provision applicable to the case at hand may violate the fundamental rights and liberties enshrined in the Constitution.
- III. Moreover, the constitutional claim can be raised by a supreme judge (the *Conseil d'Etat* or the *Cour de Cassation*) only.
- IV. The claim is to be considered relevant for the *Conseil* if:
 1. it is *concretely* applicable to the dispute
 2. the *Conseil constitutionnel* *hasn't* already decided on its compatibility with the Constitution
 3. it is a pledge characterised by an innovative serious nature

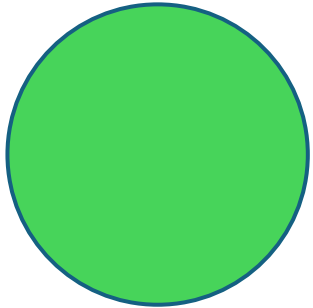


The **Hybrid** models of constitutional review

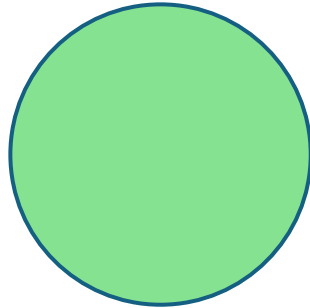
Judicial Review is carried out:

- i. By the specialized ad hoc Constitutional Court:
centralized review;
- ii. Special proceedings or under the regular Court proceedings:
incidenter or principaliter;
- iii. After the law has come into effect:
a posteriori.

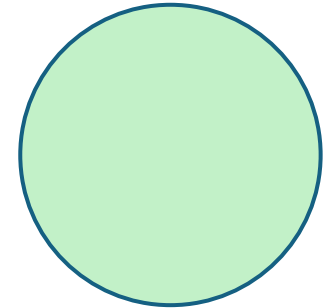
Other Functions of Constitutional/Supreme Courts



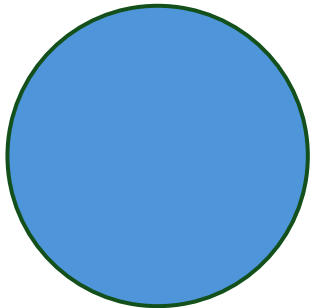
Jurisdictional
disputes



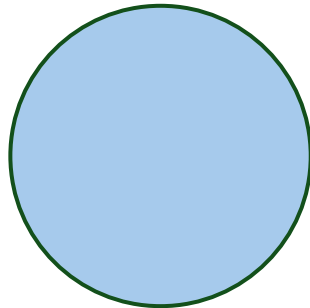
Political Parties



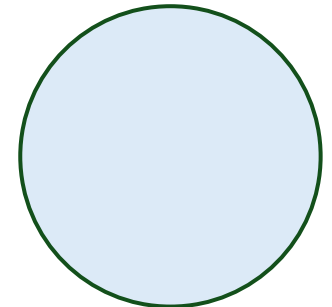
Referendum



Elections

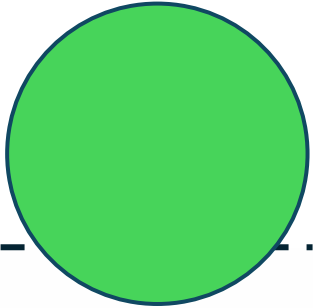


Confirmation of
elected members



Impeachment

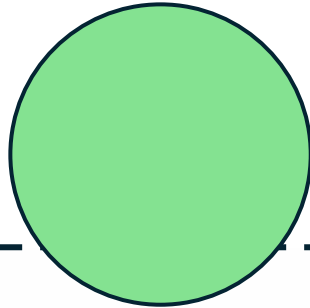
Other Functions of Constitutional/Supreme Courts



Jurisdictional disputes

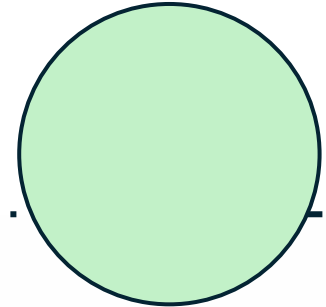
Between:

- 1) Top government bodies;
- 2) State and regional or local entities;
- 3) Local or regional entities;
- 4) Courts and other government bodies.



Political Parties

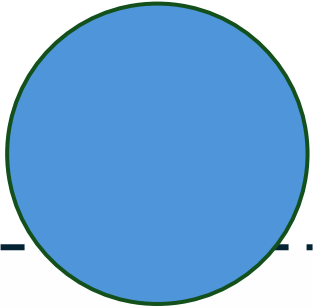
Decision-making related to matters of unconstitutional acts and activities.



Referendum

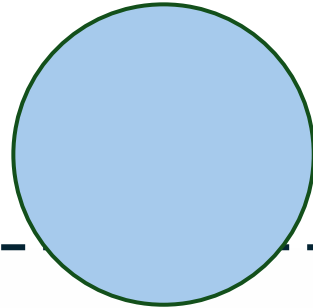
Decision-making regarding its conformity to the Constitution.

Other Functions of Constitutional/Supreme Courts



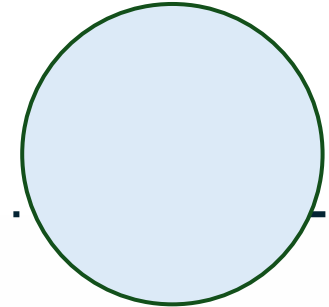
Elections

Decision-making regarding the conformity of proceedings with the Constitution and Statute Law.



Confirmation of
elected members.

Ensure the legitimacy and legality of elections by confirming the results and the eligibility of elected members, safeguarding the integrity of the democratic process.



Impeachment

Of

- I) President of the State
- II) Other State representatives.